

INTA Practice Guides Report

Trademark Cancellations Guide

Czech Republic

SINGLE JURISDICTION REPORT

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I. Availability — A. Availability

- Cancellation of a trademark is available for: national marks; international marks; European Union Trade Marks. The Czech Industrial Property Office does not have legal power to cancel a European Union Trade Mark (EUTM); however, the EUTM Court in the Czech Republic, which is the Prague Municipal Court, may declare an EUTM to be revoked or invalid on the basis of a counterclaim in infringement proceedings.
- "Cancellation" is defined by legislation as follows: Zrušení (cancellation) is defined in Section 31 of the Czech Trademark Act; Neplatnost (invalidity) is defined in Section 32 of the Czech Trademark Act.
- Cancellation actions can be filed online at the following URL: <https://isdv.upv.cz/webapp/epweb.home>

II. Grounds — A. Absolute Grounds

- The following absolute grounds may be raised in cancellation proceedings: the mark is descriptive; the mark is misleading and/or deceptive; the mark lacks distinctiveness; the mark is generic; the mark consists of a geographical indication; the mark is functional; the mark is against public policy or principles of morality; the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention; the mark includes a badge or emblem of particular public interest; the mark is prohibited in this jurisdiction; the application for or registration of the mark was made in bad faith; other absolute grounds, i.e., grounds that relate to the inherent registrability of a mark: the mark is not capable of: (a) distinguishing the goods or services of one undertaking from those of other undertakings; or (b) being represented on the register in a manner which enables the competent authorities and the public to determine the clear and precise subject matter of the protection afforded to its proprietor.

II. Grounds — B. Relative Grounds

- The following relative grounds may be raised in cancellation proceedings: there is an earlier application or registered mark; there are earlier use-based rights in an unregistered mark; the application for or registration of the mark was made in bad faith; the mark is covered by a copyright; the mark is a company name (provided that the use of the younger mark can harm the rights to the company name); the mark is notorious or well known (Article 6bis of the Paris Convention); the trademark application was filed or the registration was granted in the name of an agent or other person with a business connection to the owner of the mark (Article 6septies of the Paris Convention); the mark is a trade or business name (provided that the use of the trade or business name constitutes use of an unregistered mark and there is likelihood of confusion); the mark is a domain name (provided that the use of of the

domain name constitutes use of an unregistered mark and there is likelihood of confusion); other relative grounds, i.e., grounds that are based on another party's proprietary rights: personality and privacy rights; other IP rights such as registered design rights.

II. Grounds — C. Grounds Other Than Absolute, Relative or Non-Use

- In addition to the absolute or relative grounds listed above and/or the non-use grounds listed below, the following grounds may also be raised in cancellation proceedings: if, as a result of acts or inactivity of the proprietor, the trademark has become the common name in the trade for a product or service in respect of which it is registered; or if, as a result of the use made of it by the proprietor of the trademark or with the proprietor's consent in respect of the goods or services for which it is registered, the trademark is liable to mislead the public, particularly as to the nature, quality, or geographical origin of those goods or services.

II. Grounds — D. Non-Use Grounds

- Non-use may be raised as a ground in cancellation proceedings.
- In relation to cancellation for non-use, "use" is defined as: genuine use in the Czech Republic in connection with the goods or services in respect of which the mark is registered.
- The definition of "use" provided above is derived from statute, regulation or administrative rule: Section 31(1) a of the Czech Trademark Act.
- Use by a licensee or with the consent of the proprietor constitutes use by the proprietor.
- The time frame within which a mark must be used in order to avoid cancellation runs from: the date of registration.
- Counting from the above date, to avoid cancellation for non-use, the mark must be used within: five years.
- The consequences of use being interrupted are: If use is interrupted for more than five years, the mark is considered as not in use and therefore vulnerable to cancellation.

II. Grounds — E. Multiple Grounds

- An application for cancellation may not be based on multiple grounds (i.e., on a combination of absolute, relative and non-use grounds). Multiple grounds applications are only admissible within the same category of grounds (either absolute grounds or relative grounds), but cannot be combined across these categories. A non-use cancellation application must also be filed separately.

II. Grounds — F. International Registrations and European Union Trade Marks

- Grounds for cancellation are the same in respect of international marks as they are for national marks.
- Grounds for cancellation are not the same in respect of European Union Trade Marks as they are for national marks in that: the range of relevant earlier rights is broader for EUTMs and includes any earlier trademark valid in any EU member state. Likewise, earlier unregistered trademarks or other signs used in the course of trade may also originate from any EU member state.

II. Grounds — G. Introduced Later in Proceedings

- Additional grounds for cancellation may not be introduced at a later stage in the proceedings.

III. Forum — A. Forum

- The forum for cancellation proceedings is the same regardless of the grounds on which the proceedings are brought. Cancellation proceedings on all grounds may be brought before the following administrative body: Úřad průmyslového vlastnictví České republiky (Industrial Property Office of the Czech Republic).
- The administrative body/bodies listed above is/are not independent of the trademark registry.

IV. Standing — A. On Basis of Grounds

- The parties that have legal standing to apply for cancellation vary, depending on the grounds for the cancellation.
- For cancellations based on absolute grounds, the following parties have standing: any person. Legal interest is not required.
- For cancellations based on relative grounds, the following parties have standing: any interested person. Legal interest is required.
- For cancellations based on non-use grounds, the following parties have standing: any person. Legal interest is not required.
- For cancellations based on grounds other than absolute, relative or non-use grounds, the following parties have standing: any person. Legal interest is not required.

IV. Standing — B. Person/"Interested Person" Defined

- For purposes of standing, a "person" is defined as: both natural and juridical persons.
- For purposes of standing, an "interested person" is defined as: someone who believes he is being damaged by the registration; someone who has filed an earlier pending application to register a conflicting trademark; someone who owns an earlier conflicting trademark registration; someone who owns earlier rights in a copyright or design that conflicts with the mark that is the subject of the trademark application; someone who owns rights in a conflicting trademark that were acquired through use; someone who owns a company name that conflicts with the mark that is the subject of the trademark application.

IV. Standing — C. Domestic/Foreign Applicant

- The legal standing criteria for domestic and foreign applicants are the same, regardless of the grounds for cancellation.

IV. Standing — D. Multiple Applicants

- More than one applicant may apply jointly for cancellation, regardless of the grounds for cancellation.

IV. Standing — E. Infringement Defendant as Applicant

- In a court action for trademark infringement, cancellation of the plaintiff's trademark registration may not be sought by a defendant. There are two exceptions in proceedings before Czech courts. The first is a counterclaim in relation to European Trade Marks within infringement proceedings under Article 128 of the EUTM

Regulation. The second is a special procedure (not available before the Czech Industrial Property Office) on revocation of a trademark by a court on grounds of unfair competition.

V. Representation — A. Qualifications

- The applicant is required to appoint a representative (attorney, agent or other legal representative) in cancellation proceedings in the following circumstances: if it does not have a place of business, registered office, or permanent residence in the Czech Republic.
- The representative must be domestic, i.e., with an office in the jurisdiction.
- Additional professional qualifications required of a representative in cancellation proceedings are as follows: The representative must be a member of the Czech Bar Association or of the Czech Chamber of Patent Attorneys.

V. Representation — B. Power of Attorney-- Notarization/Legalization Requirements

- A signed power of attorney must be provided to a representative by an applicant in cancellation proceedings.
- There are no notarization/legalization requirements for a power of attorney form in cancellation proceedings. A simple signature without notarization or legalization is sufficient. An electronic copy is acceptable.

VI. Commencement — A. Timing

- Cancellation proceedings that are independent of opposition proceedings may never be commenced before a mark is registered.

VI. Commencement — B. Deadline

- There is never a deadline for bringing cancellation proceedings, regardless of the grounds for cancellation.

VI. Commencement — C. Statute of Limitations

- The statute of limitations or acquiescence provisions that will prevent cancellation vary, depending on the grounds for cancellation. For proceedings brought on absolute grounds, the statute of limitations or acquiescence provision is: none; however, if the mark acquired distinctiveness after registration but prior to the cancellation filing date, it will not be cancelled. For proceedings brought on relative grounds, the statute of limitations or acquiescence provision is: five years of intentional acquiescence of the younger mark. For proceedings brought on non-use grounds, the statute of limitations or acquiescence provision is: none.

VII. Partial Cancellation — A. Partial Cancellation

- Partial cancellation of a registration is possible, regardless of the grounds for cancellation.
- For single-class registrations and for multi-class registrations, it is possible to apply for cancellation of some of the goods either within the single class or within a given class, as appropriate, without applying for cancellation of all of the goods within the class.

VIII. Length of Proceedings — A. Length of Proceedings

- The average duration of cancellation proceedings is: one to two years in the first instance and one to two years in the appellate instance.
- After final arguments have been made and/or oral hearings have taken place, a decision will be rendered within the following time frame: 6 to 12 months.

IX. Costs and Fees to Initiate — A. Costs and Fees to Initiate

- The following costs and fees are associated with initiating cancellation proceedings: attorney fees; statutory or regulatory fees.
- No official fees are refundable if an application for cancellation is withdrawn, regardless of the grounds for cancellation.

X. Documentation-- Notarization / Legalization Requirements — A. Documentation-- Notarization / Legalization Requirements

- No documents need be notarized or legalized in cancellation proceedings.
- The documentation that must be submitted and the procedures necessary to initiate cancellation proceedings vary, depending on the grounds for cancellation. The documentation and procedures to initiate cancellation proceedings based on absolute grounds are as follows: written arguments and evidence, if applicable, relating to rejection on absolute grounds. The documentation and procedures to initiate cancellation proceedings based on relative grounds are as follows: written arguments and evidence of the earlier right, for example, of the existence of the right to a prior unregistered sign. The documentation and procedures to initiate cancellation proceedings on non-use grounds are as follows: none, other than a claim that the mark is not in use. The documentation and procedures to initiate cancellation proceedings based on grounds other than absolute, relative or non-use grounds are as follows: written arguments and evidence relating to rejection on the grounds of the mark becoming generic or deceptive.

XI. Discovery — A. Interrogatories

- No party may request that any other party answer written questions, under oath ("Interrogatories").

XI. Discovery — B. Document Requests

- No party may request that any other party produce documents in response to written document requests ("Document Requests").

XI. Discovery — C. Depositions

- No party may request that one or more witnesses for any other party appear in person to be cross-examined under oath ("Depositions").

XII. Burden of Proof — A. Burden of Proof

- The burden of proof can shift to the other party during the course of cancellation proceedings under the following circumstances: when proof of use must be shown in non-use cancellation proceedings.

XIII. Written Arguments — A. Requirement/Deadline

- Written arguments are mandatory.
- The deadline for submitting written arguments is determined by scheduling order or

ruling of the court, other judicial tribunal or administrative body and is: Written arguments of the applicant must be part of the cancellation petition. If the cancellation petition lacks necessary arguments and evidence, the Industrial Property Office will invite the applicant to submit it within two months.

XIII. Written Arguments — B. Extensions to File

- Extensions of time are not available to the applicant to file written arguments.
- Extensions of time are available to the respondent to file written arguments. The duration of the extension is: two months. The following number of extensions is available: two to three.
- Extensions do not require the consent of the adverse party.
- Extensions require the approval of the court, other judicial tribunal or administrative body.
- The following official fees must be paid to obtain extensions: The first extension is CZK 200 (approx. USD 9); each additional extension is CZK 600 (approx. USD 26).

XIV. Oral Hearings — A. Oral Hearings

- Oral hearings are permitted in cancellation proceedings. Please note, however, that while oral hearings in cancellation proceedings before the Czech Industrial Property Office are not excluded by law, in practice they never take place.
- The determination of whether oral hearings will take place is made by: Whether or not an oral hearing takes place is solely at the discretion of the Czech Industrial Property Office. As noted above, in practice oral hearings never take place in trademark cancellation matters before the Czech Industrial Property Office.

XV. Evidence — A. To Establish Absolute Grounds

- The following types of evidence may be submitted to establish absolute grounds: in general, any evidence capable of showing that the mark is barred from registration on absolute grounds, namely excerpts from books, encyclopedias, magazines, and other publications; consumer surveys; advertising of other competitors; and the like.
- Evidence must be submitted to: the Czech Industrial Property Office.
- Evidence must be submitted by the following deadline: at the same time that the cancellation request is filed.

XV. Evidence — B. To Establish Relative Grounds

- The following types of evidence may be submitted to establish relative grounds: registration numbers of earlier trademarks valid in the Czech Republic; evidence of prior unregistered user rights, including commercial documents (invoices and delivery notes); marketing and advertising materials such as leaflets, catalogues, and newsletters.
- Evidence must be submitted to: the Czech Industrial Property Office.
- Evidence must be submitted by the following deadline: at the same time that the cancellation request is filed.

XV. Evidence — C. To Establish Non-Use Grounds

- The following types of evidence may be submitted to establish non-use grounds: None is required.
- Evidence must be submitted to: not applicable.
- Evidence must be submitted by the following deadline: not applicable.

XV. Evidence — D. To Establish Other Grounds

- The following types of evidence may be submitted to establish grounds other than absolute, relative or non-use grounds: evidence showing that a mark has become generic or that its use is deceptive may include excerpts from books, magazines, encyclopedias, and other publications; affidavits of professional or trade associations; consumer surveys; etc.
- Evidence must be submitted to: the Czech Industrial Property Office.
- Evidence must be submitted by the following deadline: Evidence must be submitted at the same time as the cancellation petition.

XV. Evidence — E. Applicant's Proof of Use

- The applicant must submit proof of use of the mark on which the cancellation is based.

XV. Evidence — F. Applicant's Extensions of Time

- Extensions of time available for the applicant's submission of evidence vary, depending on the grounds on which the cancellation proceedings are based. For cancellation proceedings based on absolute grounds, the following extensions are available: No extensions are available. For cancellation proceedings based on relative grounds, the following extensions are available: All evidence must be submitted by the applicant along with the application with the following exception: If the trademark owner requests proof of use of the earlier mark by the applicant, evidence of use must be submitted within a time limit of four months. This time limit is extendable usually by two to three times, for two months each. For cancellation proceedings based on non-use grounds, the following extensions are available: none.
- Official fees payable to obtain an extension for submitting evidence are as follows: The official fee for the first extension request is CZK 200 (approx. USD 9), and the official fee for each following extension is CZK 500 (approx. USD 21).

XV. Evidence — G. Additional Evidence

- Additional evidence may be submitted at a later stage in the cancellation proceedings. The deadline for submitting additional evidence is: Additional evidence may be submitted prior to the issuance of the first instance decision. It is at the discretion of the Industrial Property Office whether the additional evidence will be accepted.

XV. Evidence — H. Evidence in Reply/Deadline and Extensions

- Evidence in reply is optional.
- Evidence in reply must be submitted by the following deadline: within the deadline for response set by the Industrial Property Office.
- The following extensions of time for the respondent's submissions are available: Usually two to three extensions, each for two months, are available.
- The official fees payable to obtain these extensions are: CZK 200 (approx. USD 9) for the first extension, CZK 500 (approx. USD 21) for each additional extension.
- Petitioner cannot demand that respondent provide additional particulars relating to the respondent's proffered evidence.

XV. Evidence — I. Proof of Respondent's Use

- The respondent may submit the following kinds of evidence to prove

use;invoices;catalogues;evidence of turnover;packaging;labels;price lists;advertisements;written statements;market surveys;use of the mark on the Internet;maintenance of a website;use of the mark on a social media site;other: evidence of sponsorship of cultural, sports, and social events.

- In assessing whether "use has been made," sufficient use is demonstrated by: the trademark owner's effort to use the mark in order to secure a market share in the Czech Republic with the relevant goods and services.
- The following factors are considered when determining whether a mark has been sufficiently used:the nature of the goods or services at issue;market characteristics;the scale and frequency of use of the mark;export use.
- The respondent cannot demand that the petitioner provide additional particulars relating to the petitioner's proffered evidence.

XV. Evidence — J. Consequences of Failure to Respond

- The consequences if a respondent fails to file a response or answer to a petition for cancellation are as follows:Upon request of the petitioner, the court, other judicial tribunal or administrative body must enter a default judgment in favor of the petitioner. A failure to respond to a cancellation petition that is on grounds of non-use will result in cancellation of the mark.The court, other judicial tribunal or administrative body must consider and decide the matter on the merits despite such failure. For a cancellation petition on absolute or relative grounds or on the grounds that the mark became generic or became misleading, the Czech Office must consider the matter on the merits on the basis of the file despite the respondent's failure to respond.

XVI. Defenses — A. Acquired Distinctiveness

- Acquired distinctiveness can be a valid defense in cancellation proceedings based on absolute grounds. The following criteria are used to establish acquired distinctiveness: Acquired distinctiveness is a valid defense for cancellation on grounds of lack of distinctiveness or descriptiveness. The trademark owner must show that the sign acquired distinctiveness through its use on the market for the relevant goods and services. It is sufficient to show that the mark acquired distinctiveness prior to the filing date of the cancellation request, not necessarily prior to the trademark application filing date.

XVI. Defenses — B. Excusable Non-use

- Non-use can be excused, thereby avoiding cancellation, if: there are proper reasons for non-use such as import restrictions or other government requirements.

XVII. Monetary Awards/Attorney Fees — A. Basis/Amount of Award

- A cancellation decision will not include a formal monetary award against the losing party, regardless of the grounds for cancellation.

XVII. Monetary Awards/Attorney Fees — B. Attorney Fees

- The successful party is not entitled to recover attorney fees, regardless of the grounds for cancellation.

XVIII. Conclusion of Proceedings — A. Effect of Decision

- A decision in cancellation proceedings is valid against all third parties, regardless of

the grounds on which the proceedings were brought.

- A decision ordering cancellation of a mark takes effect: If cancellation is based on absolute or relative grounds, the cancellation takes effect as of the trademark application filing date, i.e., the mark is deemed as if it had never been filed. If cancellation is based on grounds of non-use, becoming generic, or subsequent deceptive use, the cancellation takes effect as of the filing date of cancellation petition. Alternatively, for the latter, the Industrial Property Office may grant the request of the petitioner to stipulate an earlier date as of which the cancellation takes effect.

XVIII. Conclusion of Proceedings — B. Withdrawal or Termination of Proceeding/Costs

- Cancellation proceedings can be terminated by withdrawing the cancellation application, regardless of the grounds for cancellation.
- Withdrawal of a cancellation application does not require the approval of the court, other judicial tribunal or administrative body; termination is automatic.
- Withdrawal of a cancellation application does not require the approval of the other party to the proceedings; termination is automatic regardless of the grounds for cancellation.
- When cancellation applications are withdrawn, the cost of the proceedings is borne by: each party; there is no reimbursement of costs in any administrative proceedings before the Czech Industrial Property Office.

XIX. Appeals — A. Availability/Deadline

- A cancellation decision may be appealed.
- Appeals of cancellation decisions must be brought before the following deadline: one month from receipt of the first instance decision, provided that substantiation can be filed within one month from filing the appeal.

XIX. Appeals — B. Forum

- Regardless of the grounds for cancellation, appeals are heard by the following administrative body: the President of the Czech Industrial Property Office (Although the President formally renders appellate decisions, in practice they are prepared and drafted by three-member appellate senates.).

XIX. Appeals — C. New Evidence

- New evidence may be submitted on appeal, but only if such new evidence could not have been submitted in the first instance.

XIX. Appeals — D. Representation/Cost/Awards

- The approximate cost range of official fees (in local currency) to file an appeal is: CZK 1,000 (approx. USD 43).
- Specialist counsel is not required, but is recommended, for an appeal of a cancellation decision.
- An appeal decision cannot include a monetary award against the losing party if the earlier decision did not include a monetary award.

XIX. Appeals — E. Scope

- An appeal consists of a complete rehearing of the matter.

XIX. Appeals — F. Further Appeals/Alternatives to Appeal

- Appeal decisions may be further appealed. Appeal decisions may be appealed to: the Prague Municipal Court with an administrative law suit. Details regarding the deadlines and fees for further appeal are as follows: two months from receipt of the appellate decision. The court fee is CZK 3,000 (approx. USD 128).
- There is no alternative procedure to an appeal.

XX. Consequences — A. Status of Mark After Cancellation

- The terminology relating to cancellation proceedings can vary from jurisdiction to jurisdiction. Within jurisdictions, the grounds for bringing a cancellation proceeding can ultimately influence the legal consequences of the cancellation. In this jurisdiction, if an applicant is successful in obtaining cancellation, the legal consequences of the cancellation will depend on the grounds on which the proceedings were brought (see below).
- If an applicant succeeds in obtaining cancellation on absolute grounds: the mark is considered as if it were never registered.
- If an applicant succeeds in obtaining cancellation on relative grounds: the mark is considered as if it were never registered.
- If an applicant succeeds in obtaining cancellation on non-use grounds: the mark is considered as having been validly registered until the date of the application for cancellation. The Industrial Property Office may grant the request of the petitioner and state an earlier date as of which the cancellation takes effect.
- If an applicant succeeds in obtaining cancellation on grounds other than absolute, relative or non-use grounds: the mark is considered as having been validly registered until the date of the application for cancellation. The Industrial Property Office may grant the request of the petitioner and state an earlier date as of which the cancellation takes effect.

XX. Consequences — B. Licenses, Assignments, Other Transactions

- The consequences for past assignments if a mark is cancelled are: none.
- The consequences for past licenses if a mark is cancelled are: none; however, the law does not preclude a refund being requested.
- The consequences for past contracts if a mark is cancelled are: none; however, the law does not preclude a refund being requested.

XXI. Notification to TM Office — A. Notification to TM Office

- There is no requirement to formally notify the Trademark Office following a decision to cancel a mark; cancellation is automatic regardless of the grounds on which the proceedings were brought. The Czech Industrial Property Office is the authority that issues the decision.

XXII. Refiling of Identical Mark — A. Refiling of Identical Mark

- After a cancellation, depending upon the grounds on which the proceeding was based, an application to register the mark may be refiled: by either of the parties to the action (However, the Industrial Property Office will apply the same conclusions to the refiled trademark application.); by a third party (However, the Industrial Property Office will apply the same conclusions to the refiled trademark application.).
- There are no time limits for refiling following the cancellation of a mark.

XXIII. Collective Marks — A. Collective Marks

- Collective marks may be registered in this jurisdiction. Collective marks are defined as: a trademark that is capable of distinguishing the goods or services of the members of an association that is the proprietor of the mark from the goods or services of other undertakings.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of collective marks, with certain modifications and additions, i.e., if the proprietor of the collective trademark does not take reasonable steps to prevent the trademark from being used in a manner incompatible with the conditions of use laid down in the agreement governing use, including any amendments which have been mentioned in the register; an amendment to the agreement governing use has been mentioned in the Register in breach of Section 38a, unless the proprietor of the trademark, by further amending the agreement governing use, complies with the requirements of this Section; or the manner in which the trademark has been used by authorized persons has caused it to become liable to mislead the public in the manner referred to in Section 37(2)(c). See Section 40 of the Czech Trademark Act.

XXIV. Certification Marks — A. Certification Marks

- Certification marks may be registered in this jurisdiction. Certification marks are defined as: a mark that is capable of distinguishing goods and services certified by its owner as to material, method of production of goods or services, quality, accuracy, or other features from goods and services that were not so certified.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of certification marks, with certain modifications and additions, i.e., if: the proprietor of the certification trademark does not meet the conditions specified in Section 40a(2); the proprietor of the certification trademark does not take reasonable steps to prevent the certification trademark from being used in a manner incompatible with the conditions of use laid down in the regulations governing use; or an amendment to the regulations governing use has been mentioned in the Register in breach of Section 40b(1) or (3), unless the proprietor of the certification trademark, by further amending the regulations governing use, complies with the requirements of this Section; or (d) the manner in which the certification trademark has been used by the authorized persons has caused it to become liable to mislead the public in the manner referred to in Section 40b(3)(c). See Section 40d of the Czech Trademark Act.

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